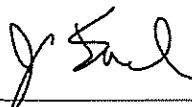


**FIRST ENDORSEMENT**

Executive Director, Civilian Complaint Review Board to Deputy Commissioner Amy J. Litwin, Department Advocate's Office, June 28, 2023. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2022-26727 against Police Officer Malvi Moncion, Tax Registry No. 947265. The case was conferenced on June 8, 2023, before Assistant Deputy Commissioner of Trials Vanessa Facio-Lince, who approved a Command Discipline Schedule B with the negotiated penalty of a forfeiture of Ten (10) vacation days. Charges and Specifications are dismissed for plea purposes.



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Executive Director  
New York City Civilian Complaint Review Board



**DISPOSITION OF CHARGES**  
PD 468-142(Rev. 8-89)-2

|                                |
|--------------------------------|
| CASE NO.<br>2022-26727         |
| BOOK & PAGE NO.<br>Page 1 of 1 |
| PERSONNEL ORDER NO.            |

|                          |                            |                      |                              |                          |
|--------------------------|----------------------------|----------------------|------------------------------|--------------------------|
| RANK/TITLE<br>POM        | SURNAME,<br>MONCION        | FIRST<br>MALVI       | M.I.<br>J                    | COMMAND<br>HOUSING PSA 7 |
| SHIELD NO.<br>12778      | TAX REGISTRY NO.<br>947265 | SOCIAL SECURITY NO.  | DATE APPOINTED<br>07/08/2008 |                          |
| RANK/NAME OF COMPLAINANT |                            |                      |                              | COMMAND                  |
| DATE OF CHARGES          |                            | DATE TRIAL COMMENCED |                              | DATE TRIAL CONCLUDED     |
| TRIAL COMMISSIONER       |                            |                      |                              |                          |

| SPECIFICATION                                                                                                                                                                                                                                                                       | DISPOSITION | RECOMMENDED PENALTY<br>PLEA [X] TRIAL []                                                                                                                                                                                                                                        |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1. Police Officer Malvi Moncion, on or about February 23, 2021, at approximately 1345, while assigned to PSA 7 and on duty, in the vicinity of § 87(2)(b) Bronx County, wrongfully used force, in that he struck § 87(2)(b) with a baton, multiple times, without police necessity. | DISMISSED   | B - COMMAND DISCIPLINE 10.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated. |

*DC Broshino*

FIRST DEPUTY COMMISSIONER

*10/12/23*  
DATE

**POLICE COMMISSIONER'S APPROVAL**

- ☒ Approved  
☐ Disapproved  
☐ Other Action (Describe)

*Edward A. Caber*  
POLICE COMMISSIONER

*1/19/24*  
DATE

**THIRD ENDORSEMENT**

First Deputy Commissioner to Police Commissioner October 12, 2023. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2022-26727 against Police Officer Malvi Moncion, Tax #947265, with the recommendation that the Charges and Specifications against Police Officer Moncion be dismissed. It is further recommended that Police Officer Moncion receive a Schedule "B" Command Discipline and forfeit ten (10) vacation days. Assistant Deputy Commissioner, Vanessa Facio-Lince reviewed this case and made a favorable recommendation pertaining to the proposed settlement. **RECOMMEND APPROVAL.**

*DC Bouchine*

Tania I. Kinsella  
**FIRST DEPUTY COMMISSIONER**

TIK/pk

**APPROVED**

JAN 19 2024  
*Edward A. Caban*  
**EDWARD A. CABAN**  
**POLICE COMMISSIONER**